

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #07	CCRB Case #: 201505193	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/12/2015 7:15 PM	Location of Incident: § 87(2)(b) 75th Precinct Stationhouse	18 Mo. SOL 12/12/2016	Precinct: 75		
Date/Time CV Reported Tue, 06/16/2015 11:57 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/24/2015 11:02 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Justin Delmonico	00390	948867	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Vitale	23951	954409	075 PCT
2. POM Daniel Gerardi	24821	953902	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Justin Delmonico	Abuse: PO Justin Delmonico threatened to arrest § 87(2)(b) at § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Justin Delmonico	Abuse: PO Justin Delmonico refused to provide his name and/or shield number to § 87(2)(b) at § 87(2)(b) in Brooklyn.	B . Unsubstantiated
C . POM Justin Delmonico	Abuse: PO Justin Delmonico arrested § 87(2)(b) at § 87(2)(b) in Brooklyn.	C . Substantiated
D . POM Justin Delmonico	Abuse: PO Justin Delmonico threatened to arrest § 87(2)(b) at the 75th Precinct Stationhouse.	D . Exonerated

Case Summary

§ 87(2)(b) filed the following complaint with IAB on June 16, 2015. The case was received at the CCRB on June 24, 2015. On June 12, 2015, at approximately 7:15 p.m., § 87(2)(b) called 911 because her § 87(2)(b)-old daughter, § 87(2)(b) was assaulted by § 87(2)(b) and an unknown girl outside of her apartment in § 87(2)(b) in Brooklyn, which is part of the Spring Creek Towers complex. PO Justin Delmonico, PO Daniel Gerardi, and PO Michael Vitale of the 75th Precinct responded, as well as a Lt § 87(2)(b) and Officer § 87(2)(b) of Spring Creek Towers Public Safety, the apartment complex's private police force. PO Delmonico told § 87(2)(b) that he did not have to make an arrest, but that if he arrested § 87(2)(b) he would have to arrest § 87(2)(b) as well (**Allegation A**). § 87(2)(b) chose for § 87(2)(b) not to be arrested but asked for PO Delmonico's name and shield number. PO Delmonico allegedly did not provide his name or shield number to § 87(2)(b) (**Allegation B**). PO Delmonico arrested § 87(2)(b) (board review 1). He detained § 87(2)(b) and prepared a juvenile report for her (**Allegation C**) (board review 2). At the 75th Precinct Stationhouse, PO Delmonico informed § 87(2)(b) that if she had a criminal history or any warrants, § 87(2)(b) would be arrested and sent to Spofford Detention Center (**Allegation D**). § 87(2)(b) read PO Delmonico's name from his shield and from paperwork he was filling out at the 75th Precinct Stationhouse.

Mediation, Civil and Criminal Histories

- Mediation was presented to § 87(2)(b) over the phone on June 29, 2015, and during her interview on July 21, 2015. She rejected mediation on both occasions.
- As of November 17, 2015, § 87(2)(b) had not filed a Notice of Claim with the City of New York with regard to this incident (board review 3).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (board review 5).
- This is the first CCRB complaint involving § 87(2)(b) (board review 24).
- PO Delmonico has been a member of the NYPD for five years and has had four previous CCRB complaints involving eight allegations with no substantiated allegations (board review 6). § 87(2)(g)

Potential Issues

§ 87(2)(b) explained that § 87(2)(b) did not have her own phone and could be reached at § 87(2)(b)'s number. Searches of CTS, Lexis Nexis, and BADS found no additional numbers for § 87(2)(b). Between the dates of June 29, 2015, and August 12, 2015, seven calls were made to § 87(2)(b) and three letters were sent. During each call either a voicemail was left or § 87(2)(b) was unavailable. § 87(2)(b) therefore did not provide a sworn statement to the CCRB.

Between the dates of August 19, 2015, and September 8, 2015, five calls were made to § 87(2)(b) and two letters were sent. For each call, voicemails were left or § 87(2)(b)'s grandmother stated § 87(2)(b) was unavailable. § 87(2)(b)'s grandmother was unable to provide

better time or an additional number to reach § 87(2)(b). Searches of Lexis Nexis, BADS, and CTS provided no additional contact information for § 87(2)(b). § 87(2)(b) therefore did not provide a sworn statement to the CCRB.

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A – PO Justin Delmonico threatened to arrest § 87(2)(b) at § 87(2)(b) in Brooklyn.

§ 87(2)(b) provided a statement to IAB on June 16, 2015, a phone statement to the CCRB on June 29, 2015, and a sworn statement to the CCRB on July 21, 2015 (Board review 25; 26). § 87(2)(g) § 87(2)(b) stated that after PO Delmonico spoke with § 87(2)(b) and § 87(2)(b) he told § 87(2)(b) that if he arrested § 87(2)(b) he would have to arrest § 87(2)(b) as well. Although § 87(2)(b) claimed that § 87(2)(b) had initiated the fight by attacking § 87(2)(b) she acknowledged that both § 87(2)(b) and § 87(2)(b) had visible injuries from the fight. § 87(2)(b)'s grandmother, § 87(2)(b) provided a phone statement but did not allege any police misconduct.

PO Delmonico was interviewed at the CCRB on September 10, 2015. He did not witness the fight between § 87(2)(b) and § 87(2)(b). § 87(2)(b) informed PO Delmonico that § 87(2)(b) had initiated the fight, and § 87(2)(b) claimed that § 87(2)(b) had done so. Both § 87(2)(b) and § 87(2)(b) had physical injuries which they claimed to have been caused by each other. PO Delmonico informed § 87(2)(b) that because both girls provided different accounts of the incident and both claimed to have been injured by the other, if he was going to make an arrest he would have to arrest both girls as a cross complaint. PO Vitale was interviewed on September 17, 2015, and PO Gerardi was interviewed on October 6, 2015. Neither PO Vitale nor PO Gerardi was present during the fight between § 87(2)(b) and § 87(2)(b). Both officers agreed that because it was determined that both girls were involved in the fight and claimed to have been assaulted by the other, they were subject to arrest as a cross complaint for assaulting each other.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

It is therefore recommended that **Allegation A** be closed as **Exonerated**.

Allegation B – PO Justin Delmonico refused to provide his name and/or shield number to

§ 87(2)(b) at § 87(2)(b) in Brooklyn.

Allegation C – PO Justin Delmonico arrested § 87(2)(b) at § 87(2)(b) in Brooklyn.

§ 87(2)(b) stated that PO Delmonico gave her the option of having all or none of the girls involved in the fight arrested. A security officer standing nearby suggested that § 87(2)(b) just file a report at the precinct instead of having the girls arrested. § 87(2)(b) replied, “That’s how I’ll handle it,” or, “That’s exactly what I’ll do,” and may have explicitly stated to PO Delmonico that she was going to make a report at the precinct. PO Delmonico did not respond. As she began to walk away, while standing approximately five feet away from the police officers, she asked, “Can I have everyone’s names and badge numbers?” When the police officers did not respond, while standing approximately 8-10 feet from the police officers, she asked for their names and badge numbers again. The officers did not respond but PO Delmonico approached § 87(2)(b). He asked her why she wanted their names and badge numbers, and if she was dissatisfied with the way in which the officers handled the incident. § 87(2)(b) replied that she did not want any problems but simply wanted the officers’ names and badge numbers. PO Delmonico did not respond and walked away. Two other officers then approached § 87(2)(b) and handcuffed her. § 87(2)(b) asked PO Delmonico why the officers were arresting § 87(2)(b) if she had previously been given the option to not be arrested. PO Delmonico allegedly replied, “Yea, until you were acting like you weren’t satisfied.” § 87(2)(b) felt as though the officers only decided to arrest § 87(2)(b) once § 87(2)(b) requested their names and badge numbers.

Lt § 87(2)(b) of Spring Creek Towers Department of Public Safety provided a phone statement on August 19, 2015. Lt § 87(2)(b) of Spring Creek Towers Public Safety provided phone statements on August 20, 2015, and September 15, 2015 (board review 27; 28; 29). Officer § 87(2)(b) of Spring Creek Towers Public Safety provided phone statement on September 24, 2015 (board review 30). Lt § 87(2)(b) could not recall if § 87(2)(b) asked the NYPD officers directly for their names or badge numbers, or if she asked Officer § 87(2)(b) to obtain that information for her. Lt § 87(2)(b) stated that § 87(2)(b) asked him to obtain the NYPD officers’ names and badge numbers, but did not hear her directly ask the NYPD officers. Officer § 87(2)(b) heard § 87(2)(b) ask as a general question for everyone’s names and badge numbers. He informed her that she would have to ask the officers directly, but did not know if she did so. The Spring Creek Towers Public Safety officers did not hear most of § 87(2)(b)’s conversation with the NYPD officers and did not know if the NYPD officers provided their names or shield numbers to § 87(2)(b). To their knowledge the girls were arrested because they had both been involved in the assault.

PO Delmonico stated that from the beginning of the incident § 87(2)(b) was agitated and irate: raising her voice, trying to speak over him, and interjecting when he was speaking with § 87(2)(b) and § 87(2)(b). He stated that she was upset about the incident involving her daughter, but that he understood why she felt this way. PO Delmonico felt the best course of action would not be to make any arrests as the girls involved were young, the incident was fairly minor, and their injuries were minor. He informed § 87(2)(b) however, that if he arrested § 87(2)(b) he would have to arrest § 87(2)(b) as well. He claimed that § 87(2)(b) was upset and agitated by this, and asked him for his name and shield number. He did not recall her asking more than once or asking any other officers. PO Delmonico did not immediately provide his information, but asked § 87(2)(b) what the problem was. § 87(2)(b) stated something to the effect of, “Forget about it. I’ll handle it myself.” PO Delmonico did not know what § 87(2)(b)

§ 87(2)(b) meant by this but no longer felt comfortable leaving the scene with § 87(2)(b) and the other parties involved together. He was not familiar with § 87(2)(b)'s criminal past or temperament and feared that by "handling it herself" she meant that she may cause harm to the opposing parties. He therefore felt that the best course of action would be to place § 87(2)(b) and § 87(2)(b) under arrest and remove them to the stationhouse for their safety and security.

PO Delmonico informed § 87(2)(b) that he was going to place § 87(2)(b) and § 87(2)(b) under arrest because they both had injuries claimed to have been caused by the other party, both claimed that the other was the primary aggressor, and because he did not know what "handling the situation" herself would entail. As he was placing § 87(2)(b) in the RMP, he told § 87(2)(b) his name and that he would be taking § 87(2)(b) back to the stationhouse. He did not provide his shield number to § 87(2)(b) because he was more concerned with trying to "correct the situation at hand, find a resolution, and address the safety concerns that she § 87(2)(b) initiated." PO Delmonico spoke with § 87(2)(b) at the 75th Precinct Stationhouse, at which point he provided his shield number to her and again told her his name. He could not recall if she requested his name or shield number again while at the stationhouse. To PO Vitale and PO Gerardi's knowledge, § 87(2)(b) and § 87(2)(b) were arrested as a cross complaint for assaulting each other and because § 87(2)(b) was insistent that an arrest be made. They did not recall the arrest being a result of § 87(2)(b) asking for officers' names or shield numbers, or because she was unsatisfied with how the officers handled the situation. PO Gerardi could not recall if § 87(2)(b) asked for his or any other officers' names or shield numbers. PO Vitale denied having been asked for his name or shield number and had no knowledge of § 87(2)(b) asking any other officers for their information.

Patrol Guide Procedure 203-09 states that an officer is to courteously and clearly state his name or shield number upon request, or otherwise provide it to the individual requesting the information (board review 7).

It is undisputed that § 87(2)(b) asked for PO Delmonico's name and shield number, and that he heard her request. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Substantiated**.

Allegation D – PO Delmonico threatened to arrest § 87(2)(b) at the 75th Precinct Stationhouse.

§ 87(2)(b) stated that while at the 75th Precinct Stationhouse, PO Delmonico asked for her identification and informed her that he would run her name. He allegedly stated that if she had an arrest history or any warrants, § 87(2)(b) would be sent to Spofford Detention Center, but that if she did not have a criminal history or warrants, § 87(2)(b) would be released to her.

PO Delmonico acknowledged informing § 87(2)(b) that if she had any active warrants or criminal history, § 87(2)(b) could be sent to Horizon Juvenile Center, formerly known as Spofford Detention Center. He explained during his interview that when dealing with juvenile offenders, officers are required to contact the juvenile crime desk and provide the information of the parent or guardian who will potentially receive the juvenile. They provide this information to confirm that the parent or guardian has no criminal record or active warrants in order to ensure that the parent or guardian is fit to receive the juvenile. If they are found to be unfit or have any active warrants, and there is no other parent or guardian fit to care for the juvenile, the juvenile is to be arrested and sent to Horizon Juvenile Center. The juvenile crime desk determines how the job should be handled: if an arrest should be made, a juvenile report should be prepared, etc. PO Delmonico was instructed by the juvenile crime desk to generate a juvenile report for § 87(2)(b) and release her to § 87(2)(b).

Patrol Guide Procedure 215-21 states that when a juvenile is detained and removed to the stationhouse, officers are to contact the juvenile desk and provide the pedigree information of the parent, guardian, or adult who would potentially take custody of the juvenile upon the juvenile's release (board review 8). The Juvenile Desk Analyst is to perform "relevant computer checks of the juvenile and the parent/guardian" and "make a recommendation whether to remand or release on recognizance a juvenile based on several factors including... the results of comprehensive background checks of the juvenile and their parent(s)." As per Patrol Guide Procedure 215-09 and 215-12, if it is determined that the juvenile is to be detained, they should be removed to Horizon Juvenile Center (board review 9; 10).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Exonerated**.

Squad: ____

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date